

New connection withheld for predecessor's old dues

High Court of Judicature at Allahabad · Division Bench · 7 February 2013 · Writ - C No. 6954 of 2013 · **Writ disposed; pay old dues under protest; connection to be considered**

HEADNOTE

Purchaser of a house sought a new connection refused for alleged old dues. The Court declined to try disputed facts as to the arrears. Clause 4.3 of the U.P. Electricity Supply Code, 2005 governs new-connection applications and includes payment of old dues. The licensee is to furnish particulars; the petitioner may pay under protest, after which the connection is to be considered in accordance with law.

FACTUAL SUMMARY

The petitioner purchased House No. LIG 3117, Awasthi Vikas-3, Kalyanpur, Kanpur Nagar on 30 June 2010 and applied for a new electricity connection. The licensee did not entertain the application because of alleged old dues. He submitted that there could be no such arrears, the previous allottee having been given possession only on 9 November 2010, and that in any event he was not liable to pay dues of earlier occupants.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3

new connection — old dues

HOLDING

The Court will not decide disputed questions of fact as to the validity of old dues. Clause 4.3 of the U.P. Electricity Supply Code, 2005 provides the procedure for a new connection and includes payment of old dues. The licensee shall furnish details of the arrears; the applicant may pay them under protest, after which the new connection shall be considered in accordance with law. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ALLEGED OLD DUES AND THE PETITIONER'S LIABILITY FOR PREDECESSOR OCCUPANTS' ARREARS

Court declined to interfere with disputed questions of fact. ¶ 3